



Order under Section 69 Residential Tenancies Act, 2006

Citation: HI-LO INVESTMENTS v SKOLNIK, 2026 ONLTB 2166

Date: 2026-01-05

File Number: LTB-L-081784-24

In the matter of: 1006, 2500 BATHURST ST
TORONTO ON M6B2Y8

Between: HI-LO INVESTMENTS

Landlord

And

LARRY SKOLNIK
BARBARA SKOLNIK

Tenant

HI-LO INVESTMENTS (the 'Landlord') applied for an order to terminate the tenancy and evict LARRY SKOLNIK and BARBARA SKOLNIK (the 'Tenant') because:

- the Tenant has been persistently late in paying the Tenant's rent.

The Landlord also claimed compensation for each day the Tenant remained in the unit after the termination date.

This application was heard by videoconference on October 23, 2025.

The Landlord's legal representative, Sharon Harris, the Tenant's legal representative, Jonathan Nehmetallah, and the Tenant attended the hearing.

Determinations:

1. As explained below, the Landlord has not proven on a balance of probabilities the grounds for termination of the tenancy or the claim for compensation in the application. Therefore, the application is dismissed.
2. The Tenant was in possession of the rental unit on the date the application was filed.
3. On September 26, 2024, the Landlord gave the Tenant a Notice to End your Tenancy for Persistent Late Payment of Rent (N8) with a termination date of November 30, 2024. The notice alleges that between September 2023 and September 2024 the Tenant paid the rent late 10 times.

4. In support of the notice, the Landlord relied on a rent ledger and the evidence of Ms. Harris, who appeared as the Landlord's legal representative. The ledger shows payments credited on, among other dates, September 5, 2023, October 3, 2023 and December 5, 2023, and later payments credited on January 23, 2024 and September 17, 2024. Ms. Harris stated that, based on the information she received from the Landlord, payments are logged on the day they are received even if the office is closed.
5. Ms. Harris also acknowledged that she does not work in the building, does not personally handle rent payments and does not have first-hand knowledge of when this Tenant's cheques were delivered or how they were collected from the building and entered into the system. Her evidence about the Landlord's practices was based on instructions rather than direct involvement.
6. The Tenant, Mr. Skolnik, testified that he lives in the unit with his wife Barbara and has lived there since 1991. He explained that when the complex was a co-op the rent was always due at the end of the month, around the 30th, and that he has continued to operate on that understanding. He said that he delivers his rent cheques to a location in the building rather than directly to the Sterling office and that, in practice, he delivers them on the first of the month. He agreed that on some occasions, such as around January 23, 2024 and September 17, 2024, he may have been late, but whenever he was late he brought the rent back to current. He is 89 years old and still pays by cheque.
7. There is a clear dispute about the rent due date. The Tenant says it is due at the end of the month, as it was historically when the complex was operated as a co-op. Ms. Harris, on behalf of the Landlord, submitted that rent is due on the first of the month. However, the Landlord did not file the tenancy agreement or any other written document establishing that the contractual due date is the first of the month. I gave Ms. Harris an opportunity to locate a lease but she was unable to do so. There is therefore no documentary evidence before me of the agreed rent due date.
8. The ledger shows the dates on which payments were credited in the Landlord's system, but given that Ms. Harris has no direct role in rent collection or logging, and given the Tenant's uncontested evidence that he delivers cheques to the building rather than to the office, I am not satisfied that the ledger, standing alone, reliably establishes the dates on which the Tenant actually paid the rent in relation to the agreed due date. In the absence of any witness with first-hand knowledge of how and when the Tenant's cheques were collected from the building and posted to the ledger, I give the ledger limited weight on the question of lateness.
9. Without clear evidence of (a) the rent due date under the tenancy agreement, and (b) when the Tenant actually paid the rent relative to that due date, the Landlord has not met its onus to prove that the rent was late on 10 occasions between September 2023 and September 2024. On the Tenant's own evidence, there were only a few occasions when rent may have been late during that period, and he brought the rent back to current. Occasional late payments of this nature, without more, do not establish persistent late payment within the meaning of section 58.
10. Because the Landlord has not proven the ground for termination, it is not necessary to consider the payment history after the notice or to weigh the circumstances under section 83 of the Act.

11. The Landlord's legal representative also asked the Board to make a pay-on-time or "prompt payment" order. That remedy is only available as a consequence of a successful application based on persistent late payment. Since the Landlord has not proven the ground under section 58 of the Act, there is no basis to impose a pay-on-time order in this case.

It is ordered that:

1. The Landlord's application is dismissed.

January 5, 2026

Date Issued

Colin Elsby

Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor
Toronto ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.